

FEDERAL MARITIME COMMISSION

DOCKET NOS. 16-01, 16-07, 16-10, 16-11, and 17-09

IN RE: VEHICLE CARRIER SERVICES

**CONSOLIDATED UNOPPOSED MOTION
FOR EXTENSION OF TIME TO FILE APPEAL**

Pursuant to Rule 228 of the Federal Maritime Commission's Rules of Practice and Procedure, 46 C.F.R. 228, Complainants in Case No. 16-01, *Cargo Agents, Inc., et al.*; Case No. 16-07, *Jill M. Alban, et al.*; Case No. 16-10, *Rush Truck Centers, et al.*; Case No. 16-11, *Landers Brothers Auto Group, Inc., et al.* and Case No. 17-09, *Fiat Chrysler Automobiles, NV* ("Complainants") submit their Consolidated Unopposed Motion for Extension of Time to File Appeal, and in support state as follows:

The instant actions allege an extensive anticompetitive conspiracy in the market for automotive and other vehicle shipping services. On May 7, 2018, an Initial Decision was served using the above-referenced caption of In re: Vehicle Carrier Services which, *inter alia*, granted motions to dismiss all claims in these actions. Without the requested extension of time, Complainants' memorandum excepting to the conclusions, findings, or statements contained in that Initial Decision, and brief in support, is due May 29, 2018—twenty-two (22) days after service of the Initial Decision. FMC Rule 227(a)(1), 46 C.F.R. 227(a)(1).

Complainants request a sixty (60) day extension of time in which to file their

memorandum excepting to the conclusions, findings, or statements contained in the Initial Decision, and brief in support. Respondents do not oppose this request.

Pursuant to Rule 102(a), 46 C.F.R. 102(a), good cause exists for the requested extension given the number and complexity of the issues to be briefed and determined. *Cf.* Fed. R. App. P. 31(c); *Bergman v. Aluminum Lock Shingle Corp. of Am.*, 251 F.2d 801, 802 (9th Cir. 1957) (complexity of case sufficient to establish good cause for additional time to brief appeal); *Nat'l R.R. Passenger Corp. & Consol. Rail Corp.—Application Under Section 402(a) of the Rail Passenger Serv. Act for an Order Fixing Just Comp.*, No. 32467, 1995 WL 67109, at *1 (ICC Feb. 17, 1995) (same).

These appeals present questions of first impression before the Commission regarding the adjudication/availability of class action procedures before the Commission, the standing of indirect purchasers to recover for anticompetitive injuries under the Shipping Act of 1984—and the determination of Congressional intent on both questions—are of sufficient importance and complexity that additional time to brief these matters is warranted to provide a comprehensive basis for the Commission's consideration. In addition, the findings and partial dismissal of Complainants actions based on limitations, and the application of the tolling provisions relied on, present policy and factual issues that require and deserve special consideration, especially in light of the determination that the pleadings in all cases sufficiently alleged viable claims under the Shipping Act based on factual allegations which must be taken as true.

Based on the above considerations, Complainants believe good cause has been demonstrated for the requested sixty (60) day extension of time in which to file their memorandum excepting to the conclusions, findings, or statements contained in the Initial

Decision, and brief in support. Again, as noted, Respondents do not oppose this request.

Respectfully submitted,

Dated: May 17, 2018



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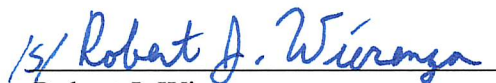


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CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on this 17th day of May 2018, a true and correct copy of the foregoing Consolidated Unopposed Motion For Extension Of Time To File Appeal was filed electronically with the Secretary of the Federal Maritime Commission and via first-class mail, and electronic copies thereof were sent to all lead/liaison counsel in the Dockets of Nos. 16-01, 16-07, 16-10, 16-11, and 17-09.



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